



Appeal Decision

Site visit made on 17 August 2026

by **C Cooper-Young MSc MRTPI**

an Inspector appointed by the Secretary of State

Decision date: 18TH September 2026

Appeal Ref: 6010834

Land adjacent to Arcady, Winters Lane To Cheese Lane, Coryates, Dorset DT3 4HW

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Roger Taylor against the decision of Dorset Council.
 - The application reference is P/FUL/2026/01044.
 - The development proposed is erection of self-build single storey dwelling with associated parking and amenity space.
-

Decision

1. The appeal is dismissed.

Preliminary Matters

2. A revised version of the National Planning Policy Framework (the Framework) was published in August 2026. In the interest of natural justice and to ensure neither of the main parties were prejudiced by this matter, I consulted both parties on the changes to the Framework. Any comments I have received have been considered in my determination of the appeal.
3. The site is within the Dorset National Landscape. Therefore, in considering this appeal I have applied the duty in section 85 of the Countryside and Rights of Way Act 2000, as amended by section 245 of the Levelling-up and Regeneration Act 2023, to seek to further the purpose of conserving and enhancing the natural beauty of the area of outstanding natural beauty.
4. The evidence indicates that the appeal site lies within nationally and internationally designated ecological sites, including a Site of Special Scientific Interest, Special Area of Conservation and Special Protection Area. I have had regard to the requirements of the Conservation of Habitats and Species Regulations 2017 (as amended). However, having concluded that the appeal should be dismissed for the substantive planning reasons set out below, the outcome of any Appropriate Assessment could not affect the decision. Consequently, it is unnecessary for me to undertake an Appropriate Assessment or reach a finding on the effects of the proposal on the integrity of these designated habitats sites. This matter does not therefore form part of my determination of the appeal.
5. A screening direction under the Town and Country Planning (Environmental Impact Assessment) Regulations 2017 (the EIA Regulations) has been issued in relation to the development subject of this appeal. This confirms that the development is not EIA development, and I proceed accordingly.

Main Issues

6. The main issues in this appeal are:
- whether the proposal would be in a suitable location for housing, having regard to local and national policies; and
 - whether the proposed development is required to deliver mandatory biodiversity net gain (BNG).

Reasons

Location of development

7. Coryates is a small, loose-knit hamlet formed through organic and incremental development. The appeal site is approached via a narrow lane and comprised of a parcel of residential garden set between two dwellings.
8. Policy INT1 of the West Dorset, Weymouth & Portland Local Plan (2015) (LP) states that there will be a presumption in favour of sustainable development that will improve the economic, social and environmental conditions in the area.
9. The spatial strategy for residential development is set out in LP Policy SUS2. The policy reflects a clear and deliberate approach to directing growth towards sustainable locations, where residents have good access to employment, services, facilities and a range of transport choices. Consequently, the majority of new housing is expected to be accommodated within the larger settlements, while development in rural areas is focused on settlements with defined development boundaries (DDBs).
10. The appeal site lies outside any DDB and is therefore within the open countryside. In such locations, the policy adopts a restrictive approach, permitting only limited forms of development that are specifically identified as appropriate. The only scope for open market housing in LP Policy SUS2, is through the re-use of existing rural buildings.
11. Coryates has no services and facilities to support day-to-day living. Portesham is approximately 2.5km from the appeal site and offers a modest range of everyday services and facilities however, these are limited. At my site visit I noted that the road network is unlit, narrow and without pedestrian footways. Access to these facilities would involve walking along a narrow, unlit road, much of which is subject to the national speed limit, this would be even less likely during inclement weather and hours of darkness. As a result, occupiers would be heavily reliant on the private car to meet their day-to-day needs.
12. The appellant refers to Dorset Council's Flexible Settlements Policy Background Paper (2025) (the Paper). However, this document is evidence prepared to inform the development of future planning policy and is not in itself policy. It has not been examined or adopted and therefore carries very limited weight. Whilst it may indicate that the Council is considering alternative approaches to the distribution of development, it does not alter the adopted development plan or justify departing from the established settlement strategy.
13. Moreover, the Paper was prepared with significant reference to the 2024 Framework rather than the current policy based version. Consequently, it attracts

only very limited weight as an evidence document and does not alter the assessment of the proposal against the adopted development plan and current national policy.

14. The appellant has drawn my attention to a number of planning decisions¹ to demonstrate the acceptability of the appeal proposal. Whilst I have not had sight of the detailed information for those decisions, the location of development for the Winters Lane site was found to be acceptable, given the close proximity to services and facilities. The East Shilvinghampton Farm decision held that the eight holiday cabins would have an economic benefit to the local rural economy. The Marnhull appeal decision outlined that villages would need to accommodate some growth. The benefits of that proposal included the provision of affordable housing, housing, financial contributions, local services and community facilities. As such, these are not similar in respect of the nature of the scheme or the relevant considerations. Each case must be considered on its merits.
15. Accordingly, I conclude that the appeal property is not in a suitable location for open market housing with particular regard to the local development strategy. As such, it is contrary to LP Policies INT1 and SUS2, the aims of which I have outlined above.

BNG

16. LP Policy ENV2 seeks to protect biodiversity and wildlife habitats by ensuring that development avoids harm to ecological interests and, where impacts cannot be avoided, that appropriate mitigation and compensation measures are secured.
17. Whilst changes to BNG exemptions were introduced on 6 August 2026 relating to sites of less than 0.2ha, Planning Practice Guidance outlines that this exemption applies only where the application for planning permission was made on or after 6 August 2026.
18. At the time of the planning application subject of this appeal, it was the case that self/custom-build submissions for dwellings were exempt from BNG requirements. The application form states that the proposed dwelling would be self-build. However, there was no robust mechanism proposed (such as a S106 legal agreement) to secure it.
19. The Procedural Guide: Planning appeals – England, paragraph 18.2.2., outlines that for appeals by written representation the appellant must ensure that the Planning Inspectorate receive an executed and certified copy of the planning obligation at the time of making their appeal.
20. I have not been provided with a signed legal agreement. In the absence of a mechanism to secure the proposed biodiversity measures in perpetuity, or for an appropriate management period, there would be no certainty that the ecological enhancements relied upon would be delivered and maintained. Consequently, it would not be possible to conclude that the development would adequately protect or enhance biodiversity interests. As such the proposal would be contrary to the aims of Policy ENV2 of the LP.

¹ Local Planning Authority refs: WD/D/19/000464; P/FUL/2022/06003 and PINS ref: APP/D1265/W/24/3353912.

Other Matters

21. The site lies within the Dorset National Landscape. The proposed dwelling would occupy the garden of Arcady and would be contained within the existing built extent of the hamlet, positioned between established dwellings. As such, it would be viewed in the context of the existing cluster of development rather than as an encroachment into the surrounding countryside. Given its contained location and relationship with neighbouring built form, the proposal would not materially diminish the natural beauty, landscape character or scenic qualities of the National Landscape. In this regard, I find that its effect on the National Landscape would be limited, and I note that my conclusion aligns with the Council's assessment.

Planning Balance and Conclusion

22. The appeal proposal would provide an additional dwelling. However, it would not be suitably located and would not adequately protect or enhance biodiversity interests. The proposal therefore conflicts with the development plan, taken as a whole.
23. Policy S3 of the Framework sets out that decision on development proposals should apply a presumption in favour of sustainable development and goes on to state that in all locations proposals that accord with both an up-to-date development plan and the decision-making policies in the Framework should be approved without delay.
24. For development proposals outside settlement, such as in this case, Framework Policy S5 stipulates that only certain forms of development should be approved, which are listed in 1. a. to j., unless the benefits of doing so would be substantially outweighed by any adverse effects, when assessed against the national decision-making policies in the Framework.
25. Both parties acknowledge that the Council cannot demonstrate a 5 year housing land supply (5YHLS). The Council has confirmed that it is able to demonstrate a housing land supply of 2.53 years.
26. With a lack of a 5YHLS and an unmet need, the most applicable criteria is subparagraph 1.j. of Framework Policy S5. This would allow development which would address an evidenced unmet housing need (as in this case) where the development is physically well-related to an existing settlement and of a scale which can be accommodated considering the existing or proposed availability of infrastructure.
27. Even though the appeal site is close to a few other houses, I have already found it is not well-related to an existing settlement. It therefore does not fall within category 1.j. of Framework Policy S5, nor from the evidence before me, would it accord with any of the other criteria at policy S5:1.a. to j.
28. Therefore, and on the basis that none of the circumstances in the criteria at S3:1. would apply, the scheme does benefit from the presumption in favour of sustainable development at Policy S3 of the Framework.
29. The proposal would provide one residential unit. Even as a windfall site or self-build dwelling, the proposal would make only a modest contribution towards addressing the shortfall. There would be some limited social and economic

benefits arising from the construction phase and future occupiers would bring a small amount of trade and benefit to facilities and services to the wider area.

30. LP Policy SUS2 is broadly consistent with the strategic aims of the Framework which seek to direct housing towards sustainable locations and maintain a plan-led approach to growth, to which I attach substantial weight. Whilst there are benefits that weigh in favour of the proposal, they do not, alone or cumulatively, amount to exceptional circumstances to warrant a departure from the development plan.
31. Taken together, the very limited benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the national decision-making policies of the Framework. As such, Policy S5 of the Framework does not point to permission being granted in this instance.
32. The proposal conflicts with the development plan and the material considerations do not indicate that the appeal should be decided other than in accordance with it.
33. For the reasons given above the appeal is dismissed.

C Cooper-Young

INSPECTOR